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Case Number: 25PSCV03077 Hearing Date: September 23, 2026 Dept: H

Perrera v. Claremont Gardens Apartments, LLC, Case No. 25PSCV03077

ORDER ON DEFENDANT'S MOTION FOR PROTECTIVE ORDER

Defendant's Motion for Protective Order is CONTINUED to November 13, 2026, at 9:00 a.m. so the parties can conduct a reasonable and good faith meet-and-confer session and provide supplemental briefing to the Court.

Background

Plaintiff Sue B. Perrera ("Plaintiff") alleges as follows:

On September 29, 2023, Plaintiff was walking towards a delivery person at the front door of her apartment, located at 856 W. Bonita Ave., Apt. I, Claremont, CA 91711 ("Apartment"), when her foot caught on a crack in the kitchen's vinyl linoleum floor. She fell onto her right shoulder, arm, and head, sustaining a right shoulder fracture. The kitchen floor is old and has developed large cracks and gaps.

On August 25, 2025, Plaintiff filed a Personal Injury Complaint, alleging causes of action against Defendant Claremont Gardens Apartments, LLC ("Defendant") and Does 1-50, inclusive, for: (1) Premises Liability and (2) Negligence.

A Post-Mediation Status Conference/Case Management Conference is set for January 14, 2027.

Legal Standard

The court must restrict the frequency or extent of use of discovery if (a) "the discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive;" or (b) "the selected method of discovery is unduly burdensome or expensive." (Code Civ. Proc., § 2019.030, subd. (a).) Such an order may be made on a motion for a protective order by a party or affected person, which must be accompanied by a meet and confer declaration. (Code Civ. Proc. § 2019.030, subd. (b).)

"When interrogatories have been propounded, the responding party, and any other party or affected natural person or organization may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2030.090, subd. (a).)

“When an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded, the party to whom the demand has been directed, and any other party or affected person, may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.060, subd. (a).)

“The Court, for good cause shown, may make any order that justice requires to protect any party...from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., §§ 2030.090, subd. (b), 2031.060, subd. (b).) Sections 2030.090, subdivision (b) and 2031.060, subdivision (b) provide a nonexclusive list of directions that may be included in a protective order, including orders directing that the interrogatories need not be answered, that the items not be produced or made available, and/or that the time to respond be extended, etc. (Id.)

Discussion

Defendant is moving for a protective order generally limiting the breadth of Plaintiff’s First Set of Special Interrogatories and Requests for Production. As to the Form Interrogatories, Defendant states it “does not take issue with plaintiff’s Form Interrogatories and will gladly respond to them once the Court rules on this motion.” (Mot., at p. 2.)

A. Meet and Confer

Defendant’s counsel represents as follows:

On June 5, 2026, counsel emailed opposing counsel to initiate a meet and confer conference to discuss the issues outlined in the operative motion. (Gutierrez Decl., ¶ 6, Ex. D.) On June 12, 2026, Plaintiff’s counsel responded:

“We are going to stand on our discovery requests as presently drafted. You propounded a significant number of discovery to our office and we handled it and responded timely. Part of our discovery propounded is based on a line of inquiry that you made including Section 8 inquiries and others. We will oppose any motion that is propounded and request sanctions for having to do so.

If you have some specific objectionable items of discovery, then the Code requires that you identify them in a meet and confer letter and we will respond accordingly.”

(Id., ¶ 7, Ex. E.)

Plaintiff’s counsel notes that “Defendant did not thereafter identify any specific interrogatory or request for production that it contended was improper. Defendant did not provide a request-by-request analysis. Defendant did not propose any targeted limitation. Defendant did not call Plaintiff’s counsel to discuss any specific discovery request prior to filing its Motion for Protective Order.” (Paris Decl., ¶ 8.)

In Defendant’s counsel’s initial email, however, counsel stated multiple times that he was hoping to set up a phone call to discuss the discovery issues and that the parties “need to have that discussion . . . no later than Friday, June 12, 2026” with Defendant’s counsel noting, “My calendar is clear and I will keep it clear for such a call.” (Gutierrez Decl., Ex. D.)

Plaintiff’s counsel misstates the Code requirements. The moving party must show “a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).) A letter is not required or the only means of meeting and conferring; meet and confer efforts by

letter are usually found deficient in California courts.

Based on the foregoing, while the Court finds the meet and confer efforts to be insufficient, Defendant's counsel did attempt to meet and confer and to schedule a telephonic conference that was not acknowledged in opposing counsel's reply email. Accordingly, the Court elects to address the merits of the motion.

B. Protective Order

Defendant argues that the 150 Special Interrogatories ("SROGs") and the 100 Requests for Production ("RPs") are overbroad and seek unnecessary and irrelevant information. (Mot., at p. 7.) Defendant also takes issue with the discovery requests seeking "all facts," "all persons," and "all documents" and labels said breadth of requests as "shotgun" style. (Mot., at p. 8.) Defendant further argues that the requests are cumulative at times and seek information that is readily and equally available to Plaintiff, such as Plaintiff's prior reports on the kitchen floor. (Mot., at pp. 8-9.) Defendant notes that it "does not take the position that plaintiff's entire set of attorney drafted interrogatories or document production requests should be stricken," and instead is seeking an order limiting the scope. (Mot., at p. 9.)

In opposition, Plaintiff argues that Defendant has not carried its burden because "Defendant does not identify a single interrogatory or request that should be barred, narrowed, deferred, or limited[,] . . . does not estimate the time or expense required to respond[,] . . . does not identify any custodian, file, record category, or search burden[, and] . . . does not explain why any specific request is duplicative, cumulative, oppressive, or improper." (Opp., at p. 4.) In addition, Plaintiff argues that her discovery "seeks the corresponding information" that Defendant had requested in its own discovery requests. (Opp., at p. 5.)

Plaintiff seeks to justify the number of special interrogatories by pointing to, among other things, the number of disputed factual issues and the fact that interrogatories are a more efficient and less expensive means compared to depositions. (Opp., at p. 7.)

Based on the foregoing, the Court finds the number of SROGs, far exceeding the 35 allowed by the Code, and RPs to be excessive and that Plaintiff fails to provide sufficient justification for the bloated amount. This is a personal injury complaint with two causes of action. The action arises from a "trip and fall" in Plaintiff's apartment. The issues here are not complex and do not warrant over 250 SROGs and RPs. In addition, the latter two "justification" arguments speak more towards the benefits of interrogatories as a discovery method rather than as support for the excess number propounded here.

Plaintiff unpersuasively attempts to point the finger at Defendant in a quasi "tit-for-tat" argument. First, the contention is attenuated by the difference in quantity of Defendant's SROGs and RPs: Defendant puts forth 44 SROGs and 49 RPs. (Paris Decl., Ex. E.) Second, by putting forth such an argument, the implications cut across Plaintiff's prior contention that the number of SROGs and RPs are not meant to harass or oppress Defendant.

The Court also finds that even at a cursory glance, the discovery requests seem redundant. For example, SROGs Nos. 2 and 3 ask Defendant to state whether there was any procedure for reporting and then to again identify and to describe that procedure. (Gutierrez Decl., Ex. B.) This issue extends to other interrogatories as well, and the Court determines that many interrogatories can be combined and/or stricken as duplicative.

The Court, however, agrees with Plaintiff that Defendant's own motion suffers from the same issue identified in its motion: it "paints with a broad brush." (Mot., at p. 9.) Defendant has not identified or spoken clearly as to which SROGs and/or RPs are at issue here and instead relies on the Court to carry its burden. Defendant does not address said argument in its reply.

Based on the foregoing, because it is unclear which specific discovery requests are at issue, and Defendant is not seeking a protective order covering all requests, the Court continues the hearing on the motion to allow for supplemental briefing identifying the discovery requests at issue. Moreover, because the hearing is being continued, the Court also will require a

reasonable and good faith meet-and-confer session to take place either by telephone or videoconference or in person. The Court expects the parties to work together in good faith to resolve or narrow the disputes at issue.

Accordingly, the hearing on Defendant's motion for a protective order is CONTINUED to November 13, 2026, at 9:00 a.m. The parties are directed to conduct a reasonable and good faith meet-and-confer session in person or by telephone or videoconference by October 7, 2026 and are to file by October 8, 2026 a joint declaration summarizing the results of the meet-and-confer session and indicating which specific issues remain in dispute. If disputes remain, Defendant's supplemental brief to the motion for protective order² shall be filed and served on or before October 20, 2026, and Plaintiff's supplemental opposition shall be filed and served on or before November 3, 2026. [FN]

[FN] As to the issue of sanctions, because the Court finds that the number of discovery requests are overbroad and impermissibly excessive, Plaintiff's request is denied. Defendant does not move for sanctions. (Gutierrez Decl., ¶ 9.)